

in extensive meet and confer efforts, as well as filing a pretrial discovery conference request before finally filing her motions to compel. It was only after plaintiff went to the expense and trouble of filing the motions that defendant finally relented and served substantive responses, even though it could have provided responses months earlier. Therefore, defendant's failure to serve substantive responses was unjustified, and was apparently simply intended to cause plaintiff to incur additional costs and delays. As a result, the court will grant plaintiff's request for sanctions against defendant.

However, the court will reduce the amount of sanctions to a more reasonable number. Plaintiff has requested \$3,322.50 in sanctions for the cost of bringing both motions. The requested amount is excessive, especially considering the fairly narrow issue presented by the motions. The court will award only \$1,320 in attorney's fees based on four hours of time billed at \$330 per hour, plus \$120 in filing fees, for a total of \$1,440 in sanctions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 07/01/26
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***Hakim v. ASM Global, LLC, et al.***
Superior Court Case No. 25CECG03286

Hearing Date: July 2, 2026 (Dept. 501)

Motion: by Plaintiff for an Order Compelling Defendant ASM Global, LLC's Responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and to Deem Requests for Admission Admitted

by Plaintiff for an Order Compelling Defendant ASM Global Fresno, LLC's Responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and to Deem Requests for Admission Admitted

Tentative Ruling:

To deny the motions against ASM Global, LLC and ASM Global Fresno, LLC, without prejudice.

Explanation:

Plaintiff Terajee Hakim moves under Code of Civil Procedure sections 2030.290 and 2031.300, to compel defendants ASM Global, LLC and ASM Global Fresno, LLC to respond to Form Interrogatories – General, sets one and two, Form Interrogatories –Employment, set one, Special Interrogatories, sets one and two, and Request for Production, set one. Plaintiff is also moving under Code of Civil Procedure section 2033.280 for an order deeming Requests for Admission, sets one and two, deemed admitted by defendants.

Code of Civil Procedure sections 2030.290, 2031.300 and 2033.280 govern motions where the answering party fails to serve a timely response. Here, however, the moving papers indicate that timely responses were served on October 22, 2025, following a series of extensions to respond to set one of the discovery propounded. (Searcy Decl., ¶¶ 5-6.) A response containing only objections need not be verified and is complete at the time of service. (Code Civ. Proc., §§ 2030.250, 2031.250, 2033.240; *Blue Ridge Ins. Co. v. Sup.Ct. (Kippen)* (1988) 202 Cal.App.3d 339, 344.)

Accordingly, since the motions are brought under inapplicable statutes, the motions are denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

